

B3 LANDSCAPING, BIODIVERSITY AND VEGETATION PRESERVATION

Trees and vegetation are an integral component of the urban environment. They provide habitat for animals, create a distinctive character for an area, visually soften the built environment and improve the natural environment through improved water infiltration, soil stability and air quality.

This part has been developed in accordance with *State Environmental Planning Policy (Biodiversity and Conservation) 2021 (B&C SEPP)* which outlines additional provisions relating to the protection and preservation of trees and vegetation. The terms '**vegetation**' and '**clear**' have specific meanings under the B&C SEPP. This Part adopts the definitions as outlined in the B&C SEPP.

Clearing that is ancillary to development requiring consent will be assessed as part of the development assessment process and may require further assessment and approval under the *Biodiversity Conservation Act 2016*.

This Part of the DCP regulates the clearing of vegetation that is below the Biodiversity Offset Scheme threshold referred to in the *Biodiversity Conservation Act 2016*, and specifies the species, kinds and size of trees protected from damage or removal in the Waverley local government area and for which Council may issue a Vegetation Clearing Permit.

Pruning of all trees to be carried out to Australia Standards AS 4373 – 2007 Pruning of Amenity Trees. Refer to 'Prune' in Definitions & Abbreviations section. Pruning in accordance with this Australian Standard prevails over any Council requirement. For the purposes of Part 2.3 of the B&C SEPP, the following vegetation is declared to be vegetation to which the B&C SEPP applies:

- (i) Any vegetation on Land identified as 'Biodiversity' on the Terrestrial Biodiversity Map in WLEP; or
- (ii) Any vegetation on Land identified as 'Biodiversity Habitat Corridor' in WDCP2022; or
- (iii) A tree identified on the Waverley Significant Tree Register; or
- (iv) A tree or vegetation that forms part of a Heritage Item or is within a Heritage Conservation Area;
- (v) Any tree that has a height of three metres or more; or
- (vi) Any tree that has a canopy spread of three metres or more.

In addition to this Part of the DCP, the *Waverley Tree Management Policy (WTMP)* and *Waverley Tree Management Guidelines (WTMG)* also outlines requirements for all tree and vegetation related activity. Please refer to the WTMP and WTMG for additional information relating to the protection of trees.

3.1 GENERAL PROVISIONS**Objectives**

- (a) To ensure the conservation of trees of ecological, environmental, heritage and aesthetic significance.